

HOUSE No. 1748

The Commonwealth of Massachusetts

PRESENTED BY:

Natalie M. Higgins

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to preventing suicide.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/15/2025</i>
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	<i>1/29/2025</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>8/1/2025</i>

HOUSE No. 1748

By Representative Higgins of Leominster, a petition (accompanied by bill, House, No. 1748) of Natalie M. Higgins and Mark C. Montigny for legislation to establish penalties for the knowledge of suicidal ideation. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to preventing suicide.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 265 of the General Laws is hereby amended by inserting after section 16 the
2 following section:-

3 Section 16A. (a) For the purposes of this section, the following words shall have the
4 following meanings unless the context clearly requires otherwise:

5 “Suicide”, death caused by self-directed injurious behavior with intent to die as a result of
6 such behavior.

7 “Suicide attempt”, a non-fatal, self-directed and potentially injurious behavior with intent
8 to die as a result of such behavior, regardless of whether the behavior actually results in physical
9 injury.

10 “Suicidal ideation”, thinking about, considering or planning suicide.

“Knowledge of suicidal ideation”, actual knowledge of: (i) prior attempts to die by suicide; (ii) a person’s planned methods to die by suicide; (iii) a person’s intent to die by or attempt to die by suicide; or (iv) a person’s prior expression of such suicidal inclinations.

(b) A person shall be punished by imprisonment in the state prison for not more than 5 years if such person has knowledge of another person’s suicidal ideation and:

(1) (i) exercises substantial control over the other person through: (A) control of the other person’s physical location or circumstances; (B) deceptive or fraudulent manipulation of the other person’s fears, affections or sympathies; or (C) undue influence whereby the will of 1 person is substituted for the wishes of another;

(ii) intentionally coerces or encourages that person to die by or attempt to die by suicide; and

(iii) as a result of the coercion or encouragement, in whole or in part, such other person dies by or attempts to die by suicide; or

(2) (i) intentionally provides the physical means, or knowledge of such means, to the other person for the purpose of enabling such other person to die by or attempt to die by suicide and, as a result, the other person dies by or attempts to die by suicide; or

(ii) participates in a physical act which causes, aids, encourages or assists the other person in dying by or attempting to die by suicide.

(c) This section shall not apply to a medical treatment lawfully administered by, or in a manner prescribed by, a licensed physician.

31 (d) If a person is found guilty under this section, such person shall not also be eligible for
32 prosecution or punishment for committing manslaughter pursuant to section 13.